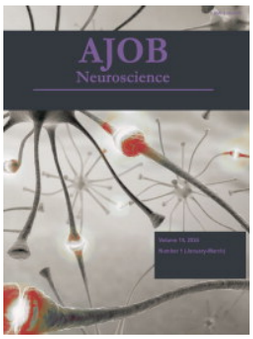

AJOB Neuroscience

ISSN: 2150-7740 (Print) 2150-7759 (Online) Journal homepage: www.tandfonline.com/journals/uabn20

Chemical Restraints and the Basic Liberties

David Birks

To cite this article: David Birks (2024) Chemical Restraints and the Basic Liberties, AJOB Neuroscience, 15:1, 22-24, DOI: 10.1080/21507740.2023.2292498

To link to this article: https://doi.org/10.1080/21507740.2023.2292498

Published online: 11 Jan 2024.

Submit your article to this journal

Article views: 155

View related articles

View Crossmark data

Citing articles: 1 View citing articles

Full Terms & Conditions of access and use can be found at
https://www.tandfonline.com/action/journalInformation?journalCode=uabn20

Chieze, M., S. Hurst, S. Kaiser, and O. Sentissi. 2019. Effects of seclusion and restraint in adult psychiatry: A systematic review. *Frontiers in Psychiatry* 10:491. doi:10.3389/fpsyt.2019.00491.

Crutchfield, P., and M. Redinger. 2024. The conditions for ethical chemical restraints. *AJOB Neuroscience* 15(1): 3–16. doi:10.1080/21507740.2022.2126539.

Gaillard, A. S., E. Braun, J. Vollmann, J. Gather, and M. Scholten. 2023. The content of psychiatric advance directives: A systematic review. *Psychiatric Services* 74 (1):44–55. doi:10.1176/appi.ps.202200002.

Gather, J., G. Juckel, T. Henking, S. A. Efkemann, J. Vollmann, and M. Scholten. 2020. Under which conditions are changes in the treatment of people under involuntary commitment justified during the COVID-19 pandemic? An ethical evaluation of current developments in Germany. *International Journal of Law and Psychiatry* 73:101615. doi:10.1016/j.ijlp.2020.101615.

Georgieva, I., C. L. Mulder, and A. Wierdsma. 2012. Patients' Preference and Experiences of Forced Medication and Seclusion. *The Psychiatric Quarterly* 83 (1):1–13. doi:10.1007/s11126-011-9178-y.

Henking, T., and M. Scholten. 2023. Respect for the will and preferences of people with mental disorders in German law. In *Capacity, Participation, and Values in Comparative Legal Perspective*, ed. C. Kong, J. Coggon, P. Cooper, M. Dunn and A. R. Keene, 203–225. Bristol: Bristol University Press.

Kersting, X. A. K., S. Hirsch, and T. Steinert. 2019. Physical harm and death in the context of coercive measures in psychiatric patients: A systematic review. *Frontiers in Psychiatry* 10:400. doi:10.3389/fpsyt.2019.00400.

Maeck, L., and G. Stoppe. 2010. Competence assessment. In *Ethics in psychiatry: European contributions*, ed. Hanfried Helmchen and Norman Sartorius, 209–226. Dordrecht: Springer.

Muir-Cochrane, E., C. Oster, A. Gerace, S. Dawson, R. Damarell, and K. Grimmer. 2020. The effectiveness of chemical restraint in managing acute agitation and aggression: A systematic review of randomized controlled trials. *International Journal of Mental Health Nursing* 29 (2):110–26. doi:10.1111/inm.12654.

Scholten, M., and J. Gather. 2018. Adverse consequences of article 12 of the UN Convention on the Rights of Persons with Disabilities for persons with mental disabilities and an alternative way forward. *Journal of Medical Ethics* 44 (4):226–33. doi:10.1136/medethics-2017-104414.

AJOB NEUROSCIENCE
2024, VOL. 15, NO. 1, 22–24
https://doi.org/10.1080/21507740.2023.2292498

OPEN PEER COMMENTARIES

Chemical Restraints and the Basic Liberties

David Birks

The University of Hong Kong

Crutchfield and Redinger (2024) argue that, ceteris paribus, it is morally worse to deploy a restraint that undermines a basic liberty than one that does not.[1] This is a plausible view, and is likely to be shared by many. Their account of what constitutes a basic liberty is more controversial. They hold that physical restraints – such as those that prevent a patient from moving his arms and legs during a medical procedure – and chemical restraints that render a person unconscious, both intrude upon a person's basic liberty. Whereas chemical restraints that change a person's particular conscious state, without rendering him unconscious, do not intrude upon a basic liberty. As a result, they conclude "the *first line restraint should be chemical restraints that only change the particular conscious state the person is in*" (13, italics in original). While this has considerable importance in determining how we ought to treat patients in medical contexts, it also has implications for the debate in criminal justice on the use of neurointerventions—"interventions that exert a physical, chemical or biological effect on the brain in order to diminish the likelihood of some forms of criminal offending" (Douglas and Birks 2018, 2). For if an interference with a particular conscious state does not intrude upon a basic liberty, then we could potentially circumvent one objection to their use (Bublitz and Merkel 2014).

CONTACT David Birks birks@hku.hk Department of Politics and Public Administration, The University of Hong Kong, Hong Kong SAR, People's Republic of China.

[1]The ceteris paribus clause is important because Crutchfield and Redinger make it clear that other considerations matter too. They write "just because a restraint is more intrusive than an alternative, it doesn't follow that it is less permissible" (2024, 12).

© 2024 Taylor & Francis Group, LLC

In this commentary, I will argue that Crutchfield and Redinger have not yet given sufficient grounds to deny that there is a basic liberty against having one's conscious state intentionally changed. In fact, it is plausible to hold that in at least some cases, changing a particular conscious state is a greater intrusion to a basic liberty than one that simply intrudes upon being conscious. This means that further argument is needed to establish the order in which various restraints should be administered.

Let's first examine the grounds that Crutchfield and Redinger (2024) give for denying that changing a conscious state undermines a basic liberty. They provide two arguments. They begin by appealing to a view they attribute to Philip Pettit, that a liberty is basic when it is required for living the life of a free person. They argue that while it is necessary to be conscious to live the life of a free person, being in any particular conscious state is not necessary. Consequently, an intervention that intrudes upon the content of a particular conscious states does not necessarily intrude upon a basic liberty.

As an aside, it is not clear that this statement of Pettit's account of basic liberties is helpful here. When Crutchfield and Redinger define a basic liberty, no explanation is given beyond Pettit's statement that it is "one that is required for living the life of a free person" (6). But this is not an instructive statement by itself. Pettit provides three necessary conditions for a set of liberties to be basic, and makes clear that there are different sets of liberties that could meet these conditions (2008, 201). We can imagine several possible plausible understandings of what is required to live the life of a free person. Some might hold that in order to live the life of a free person, certain conditions of autonomy are necessary (Raz 1986, 369–378), or that freedom from interference is required (Steiner 1994). Alternately, one might hold that the basic liberties are those necessary for the development and exercise of our two moral powers (Rawls 2001, 45). Without a clear account of what is required to live a life of a free person, it is difficult to establish that certain restraints undermine a basic liberty while others do not.

Suppose for the sake of argument we can proceed with this loose definition of a basic liberty. I suspect some might hold that there are cases in which changing a particular conscious state is a greater intrusion to a basic liberty than one that simply intrudes upon being conscious.

Imagine a person, Arnold, who has a strong desire to see his competitors, Bernie and Clare, fail at achieving their goals. The specific details of their goals should not concern us here, but in order to be achieved certain actions are required to be performed by the time of T_1. Arnold has two possible means of thwarting their goals. In order to prevent Bernie from achieving his goal, Arnold administers a chemical that renders Bernie unconscious. Bernie regains consciousness after T_1, and so, fails at his goal. In order to prevent Clare from achieving her goals, Arnold administers a chemical that alters Clare's desires. As a result of this chemical, at T_1, she no longer desires to achieve her goals, and in fact now desires to achieve goals that are ideologically opposed to her original goals. Moreover, she is unaware that her desires have been altered by Arnold. Once the effects of the chemical have worn off, Clare desires to achieve her original goals, but because this occurs after T_1, she fails.

Are there good grounds to hold that Bernie has had a basic liberty intruded, but Clare has not? We might in fact think that the fact Arnold has altered Clare's desires is an intrusion with an even more fundamental liberty than in the case of Bernie. After all, to have one's desires intentionally controlled and shaped by another agent is a clear case of being subject to "'dominating control' over what you choose" (Pettit 2008, 202). We might reasonably doubt that a person could be living the life of a free person when she has her desires altered by another agent in such a way.

Crutchfield and Redinger (2024) provide a second argument to deny that altering a conscious state undermines a basic liberty. They rightly point out how little control we have over our mental states. They are correct when they note how the content of our mental states are often not determined by us, but instead are influenced by many other factors, such as our environment. They suggest that this lack of control over our mental states entails that the liberty concerning our mental states is not a basic liberty.

But this misunderstands the view of at least some of those who defend the importance of mental self-determination. It is one thing to be able to determine one's mental states – say, to be able to determine that one desires to do one thing rather than another – and quite another to not have one's mental states intentionally altered by another agent by means that bypass our rational capacities.[2] We can plausibly hold that these are two distinct fundamental human interests. It is possible to hold that the latter of these interests is a basic liberty, while conceding the former is not (perhaps for the reason given by Crutchfield and Redinger, that we lack control over our mental states). I suspect many proponents of the importance of

[2]The latter clause is important, because we might think that there is nothing objectionable about intentionally altering a person's mental states by giving them a compelling argument, for example (see, however, Tsai 2014).

mental self-determination are primarily concerned with the latter interest. It is the view Alena Buyx and I propose when setting out the mental integrity objection to the use of neurointerventions on criminal offenders (Birks and Buyx 2018, 136, see also: Douglas and Forsberg 2021).

This distinction can help us respond to Crutchfield and Redinger's (2024) comment that "…people for whom chemical restraints might be medically appropriate did not freely choose to be in the mental state they find themselves in" (8). They write this to support their view that a chemical restraint that altered the patient's mood would not constitute a loss of a basic liberty. It is probably true that patients do not choose to be aggressive, agitated, or be in some undesirable mental state. But even if we are incapable of determining our mood by our own will, and cannot help but feel agitated, we still have an interest in others not intentionally determining our mood for us. For some at least, freedom from these types of intrusions is of such importance to warrant it being a basic liberty.

DISCLOSURE STATEMENT

No potential conflict of interest was reported by the author(s).

FUNDING

The author(s) reported there is no funding associated with the work featured in this article.

ORCID

David Birks http://orcid.org/0000-0002-8416-1818

REFERENCES

Birks, D., and A. Buyx. 2018. Punishing intentions and neurointerventions. *AJOB Neuroscience* 9 (3):133–43. doi:10.1080/21507740.2018.1496162.

Bublitz, C. J., and R. Merkel. 2014. Crimes against minds: On mental manipulations, harms and a human right to mental self-determination. *Criminal Law and Philosophy* 8 (1):51–77. doi:10.1007/s11572-012-9172-y.

Crutchfield, P., and M. Redinger. 2024. The conditions for ethical chemical restraints. *AJOB Neuroscience* 15(1): 3–16. doi:10.1080/21507740.2022.2126539.

Douglas, T., and D. Birks. 2018. Introduction. In *Treatment for crime: Philosophical essays on neurointerventions in criminal justice*, ed. D. Birks and T. Douglas, 1–7. Oxford: Oxford University Press.

Douglas, T., and L. Forsberg. 2021. Three rationales for a legal right to mental integrity. In *Neurolaw. Palgrave studies in law, neuroscience, and human behavior*, ed. S. Ligthart, D. van Toor, T. Kooijmans, T. Douglas, and G. Meynen. Cham: Palgrave Macmillan. doi:10.1007/978-3-030-69277-3_8.

Pettit, P. 2008. The basic liberties. In *The legacy of H.L.A. Hart: Legal, political, and moral philosophy*, ed. M. H. Kramer, C. Grant, B. Colburn, and A. Hatzistavrou, 201–224. Oxford: Oxford University Press.

Rawls, J. 2001. *Justice as fairness: A restatement*. London: The Belknap Press of Harvard University Press.

Raz, J. 1986. *The morality of freedom*. Oxford: Clarendon Press.

Steiner, H. 1994. *An essay on rights*. Oxford: Blackwell.

Tsai, G. 2014. Rational Persuasion as paternalism. *Philosophy & Public Affairs* 42 (1):78–112. doi:10.1111/papa.12026.

AJOB NEUROSCIENCE
2024, VOL. 15, NO. 1, 24–26
https://doi.org/10.1080/21507740.2023.2292489

OPEN PEER COMMENTARIES

On Being Conscious as a Basic Liberty

Peter Shiu-Hwa Tsu[a] and Shunsuke Sugimoto[b]

[a]National Chung Cheng University; [b]Keio University

Crutchfield and Redinger (2024) maintain that "being conscious is a basic liberty," and infer from this that without informed consent, deep sedation, by intruding upon one's consciousness, is an infringement upon the patient's basic liberty. According to Crutchfield and Redinger (2024), what causes the infringement upon the patient's basic liberty is the intrusion upon one's consciousness. However, we disagree for the following two reasons.

First, we maintain that, deep sedation per se, or the intrusion upon one's consciousness, does not constitute

CONTACT Peter Shiu-Hwa Tsu u4079238@gmail.com Department of Philosophy, National Chung Cheng University, Chia-Yi, Taiwan.
Tsu is the corresponding and first author whereas Sugimoto is the second author. The authors are listed in order of contributions.

© 2024 Taylor & Francis Group, LLC